

22CHCV00059 22CHCV00059

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 22CHCV00059 Hearing Date: September 10, 2026 Dept: F47

Dept. F47

Date: 9/10/26

Case #22CHCV00059

MOTION TO SET ASIDE & VACATE JUDGMENT

&

ENTER A NEW JUDGMENT

Motion filed on 7/23/26.

MOVING PARTY: Plaintiff Voyager Trans Inc.

RESPONDING PARTY: Defendants Desmond's Studio Production Services; Ross Baker Towing, Inc.; Black and White Garage, Inc.; and Ricardo Castro

NOTICE: ok

RELIEF REQUESTED: An order, pursuant to CCP 663, to vacate and set aside the "corrected Judgment" entered by the clerk in this case on 6/11/26, on the grounds that such judgment is incorrect and erroneous and not authorized by the court and is not supported by the finding of the court after trial.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arose out of the towing of Plaintiff Voyager Trans Inc.'s (Plaintiff) vehicles from Defendant Desmond's Studio Production Services' (Desmond's) property. Plaintiff's First Amended Complaint alleged causes of action against Desmond's and Defendants Black and White Garage, Inc.; Ross Baker Towing Inc.; and Ricardo Castro for: (1) Violation of California Eviction Moratorium Order (LAMC 49.99.3, etc.); (2) Breach of Contract; (3) Wrongful Eviction; (4) Trespass to Chattel; (5) Negligence and (6) Unfair Business Practices.

After a court trial, the Court found as follows:

"As to Defendants Black and White Garage, Inc., Ross Baker Towing Inc. and Ricardo Castro, judgment is to be entered for Defendants and against Plaintiff on all causes of action on Plaintiff's First Amended Complaint.

As to Defendant Desmond's Studio Production Services, judgment is to be entered for Defendant and against Plaintiff as to the First, Second, Third, Fourth and Sixth Causes of Action; and judgment is to be entered for Plaintiff and against said Defendant as to the Fifth Cause of Action for Negligence on Plaintiff's First Amended Complaint in the amount of 17,817.00.

Any attorney's fees/costs shall be awarded pursuant to timely served and filed motion for attorney's fees/memorandum of costs."

(See 5/13/26 Minute Order, p.2; 6/11/26 Nunc Pro Tunc Order)

On 6/11/26, the Court entered the proposed Judgment submitted by Plaintiff. Also, on 6/11/26, a Clerk's Application to Vacate and Order was filed with regard to the Judgment submitted by Plaintiff and that Judgment was vacated on 6/11/26. A Corrected Judgment was then entered on 6/11/26. On 6/11/26, Notice of the Clerk's Application to Vacate and Order and the Corrected Judgment were electronically served on counsel for Plaintiff and Defendants.

On 6/26/26, Defendants Black and White Garage Inc.; Ross Baker Towing and Ricardo Castro each separately filed a Memorandum of Costs. On 6/26/26, Defendant Ricardo Castro also filed a Notice of Errata Re his Memorandum of Costs. On 6/29/26, Plaintiff filed a Memorandum of Costs. On 7/10/26, Plaintiff filed an Objection to Memoranda of Costs. On 7/16/26, Desmond's filed a Motion to Tax Costs.

On 7/23/26, Voyager filed and served the instant motion seeking an order pursuant to CCP 663, to vacate and set aside the "corrected Judgment" entered by the clerk in this case on 6/11/26, on the grounds that such judgment is incorrect and erroneous and not authorized by the court and is not supported by the finding of the court after trial. The motion was originally scheduled for hearing on 12/8/26

On 8/4/26, the Court issued a Minute Order striking Plaintiff's Objection to Memoranda of Costs. On 8/5/26, Plaintiff filed a Motion for Attorney Fees and on 8/10/26, Desmond's filed a Motion for Attorney Fees.

On 8/19/26, Defendants filed and served an opposition to the instant motion to vacate and set aside corrected Judgment. On 8/20/26, pursuant to Plaintiff's ex parte application, the Court specially set the hearing on the instant motion for 9/10/26 along with Plaintiff's Motion for Leave to File a Motion to Tax Costs. Plaintiff has not filed a reply to Defendants opposition to the instant motion. A reply to the opposition was due on or before 9/2/26, 5 court days before the 9/10/26 hearing date. See CCP 1005(b).

ANALYSIS

CCP 663 provides:

"A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected."

2. A judgment or decree not consistent with or not supported by the special verdict."

A party intending to make a motion to set aside judgment pursuant to CCP 663 must file with the clerk and serve on the adverse party a notice of such intention, designating the grounds on which the motion will be made, and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts, or in which the judgment or decree is not consistent with the special verdict within 15 days of the date of mailing of notice of entry of judgment by the clerk. See CCP 663a(a)(2). The court's power to rule on a motion to set aside and vacate a judgment pursuant to CCP 663 expires 75 days from the mailing of notice of entry of judgment by the clerk. CCP 663a(b).

Plaintiff's counsel was electronically served with notice of the Corrected Judgment on 6/11/26. (See 6/11/26 Clerk's Certificate of Service by Electronic Service). Plaintiff did not file and serve its intention to move to vacate and set aside the judgment until 7/23/26, which is more than 15 days later. Additionally, the hearing on the instant motion is more than 75 days after the 6/11/26 service of the Corrected Judgment.

Even if Plaintiff is deemed to have timely filed its notice of intent to move to set aside the judgment pursuant to CCP 663 and the hearing on the instant motion is found to be timely, Plaintiff has failed to establish any grounds to vacate the judgment under CCP 663. Plaintiff has offered no evidence to support a finding that the Corrected Judgment was based upon an incorrect or erroneous legal basis and/or was not consistent with or not supported by the facts. Rather, the Corrected Judgment entered on 6/11/26 accurately reflects the Court's findings made on 5/13/26. (See 5/13/26 Minute Order; 6/11/26 Nunc Pro Tunc Order).

CONCLUSION

The motion is denied. Dept. F47

Date: 9/10/26

Case #22CHCV00059

MOTION FOR

LEAVE TO FILE A MOTION TO TAX COSTS

Motion filed on 8/20/26.

MOVING PARTY: Plaintiff Voyager Trans Inc.

RESPONDING PARTY: Defendants Desmond's Studio Production

Services; Ross Baker Towing, Inc.; Black and White Garage, Inc.; and Ricardo

Castro

NOTICE: ok

RELIEF REQUESTED: An order, pursuant to CCP 128

and 473, for leave to re-file Plaintiff's proposed Motion To Tax Costs.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arose out of the towing of Plaintiff Voyager

Trans Inc.'s (Plaintiff) vehicles from Defendant Desmond's Studio Production

Services' (Desmond's) property. Plaintiff's

First Amended Complaint alleged causes of action against Desmond's and Defendants

Black and White Garage, Inc.; Ross Baker Towing Inc.; and Ricardo Castro for:

(1) Violation of California Eviction Moratorium Order (LAMC 49.99.3, etc.); (2)

Breach of Contract; (3) Wrongful Eviction; (4) Trespass to Chattel; (5)

Negligence and (6) Unfair Business Practices.

After a court trial, the Court found as follows:

"As to Defendants Black and White

Garage, Inc., Ross Baker Towing Inc. and Ricardo Castro, judgment is to be

entered for Defendants and against Plaintiff on all causes of action on

Plaintiff's First Amended Complaint.

As to Defendant Desmond's Studio

Production Services, judgment is to be entered for Defendant and against

Plaintiff as to the First, Second, Third, Fourth and Sixth Causes of Action;

and judgment is to be entered for Plaintiff and against said Defendant as to

the Fifth Cause of Action for Negligence on Plaintiff's First Amended Complaint

in the amount of 17,817.00.

Any attorney's fees/costs shall be

awarded pursuant to timely served and filed motion for attorney's

fees/memorandum of costs."

(See 5/13/26 Minute Order,

p.2; 6/11/26 Nunc Pro Tunc Order).

On 6/11/26, the Court entered the proposed Judgment

submitted by Plaintiff. Also, on

6/11/26, a Clerk's Application to Vacate and Order was filed with regard to the

Judgment submitted by Plaintiff and that Judgment was vacated on 6/11/26. A Corrected Judgment was then entered on

6/11/26. On 6/11/26, Notice of the

Clerk's Application to Vacate and Order and the Corrected Judgment were

electronically served on counsel for Plaintiff and Defendants.

On 6/26/26, Defendants Black and White Garage Inc.; Ross

Baker Towing and Ricardo Castro each separately filed a Memorandum of Costs

which were served by mail on the same date.

On 6/26/26, Defendant Ricardo Castro also filed a Notice of Errata Re

his Memorandum of Costs. On 6/29/26,

Plaintiff filed a Memorandum of Costs.

On 7/10/26, Plaintiff filed an Objection to Memoranda of Costs. On 7/16/26, Desmond's filed a Motion to Tax

Costs.

On 7/23/26, Plaintiff filed and served a motion seeking

an order pursuant to CCP 663, to vacate and set aside the "corrected Judgment"

entered by the clerk in this case on 6/11/26, on the grounds that such judgment

is incorrect and erroneous and not authorized by the court and is not supported

by the finding of the court after trial.

The motion was originally scheduled for hearing on 12/8/26

On 8/4/26, the Court issued a Minute Order striking Plaintiff's

Objection to Memoranda of Costs. On

8/5/26, Plaintiff filed a Motion for Attorney Fees and on 8/10/26, Desmond's

filed a Motion for Attorney Fees.

On 8/20/26, pursuant to Plaintiff's ex parte application,

the Court granted Plaintiff's request to file a Motion for Leave to File a

Motion to Tax Costs and set the hearing on same for 9/10/26. The Court also specially set the hearing on

Plaintiff's motion to set aside judgment for 9/10/26. On 8/20/26, Plaintiff filed and served the

instant motion seeking an order pursuant to CCP 128 and 473, for leave to "re-file"

Plaintiff's proposed Motion To Tax Costs.

On 8/27/26, Defendants filed and served an opposition to the motion. On 9/4/26, 2 days late, Plaintiff filed and

served a reply to the opposition. CCP

1005(b) (A reply to the opposition was due on or before 9/2/26, 5 court days

before the 9/10/26 hearing date.).

ANALYSIS

A party cannot obtain mandatory relief under CCP 473(b)

from the failure to timely file a motion to tax costs, even if the party's

attorney submits a declaration of fault.

See Douglas (1994) 27 CA4th 287, 289-293. To obtain discretionary relief under CCP

473(b), Plaintiff must establish that the adverse judgment, dismissal, order or

other proceeding resulted from mistake, inadvertence, surprise or excusable

neglect. CCP 473(b).

The motion and supporting declaration claim that Plaintiff's

"Objection" filed on 7/10/26 and stricken by the Court on 8/4/26 was actually a

Motion to Tax Costs and was "inadvertently" labeled as an objection. However, the motion and supporting

declaration fail to explain why/how this inadvertence occurred. (See 8/4/26 Minute Order). Based on the fact that Plaintiff's counsel

called the courtroom and insisted that an Objection was an appropriate method

to challenge a cost memorandum, the labeling of the document does not appear to have been an inadvertent labeling error.

Even after being told by Court staff that an objection was not the proper procedure to challenge costs, Plaintiff waited until the Court issued an order striking the objection to seek relief.

However, even if the Court accepts Plaintiff's claim that its "Consolidated Objection to Defendants' Memoranda of Costs" was intended to be a Motion to Tax such cost memoranda and was inadvertently mislabeled as an objection, the basis for the "motion" fails.

The only argument set forth in the motion against the cost memoranda filed by Defendants Black and White Garage Inc.; Ross Baker Towing and Ricardo Castro is:

"the only party entitled to file memorandum of costs is the prevailing party. Thus, based on the finding of the court, the within defendants who filed the memoranda of costs cannot be the prevailing party since (as the court found) they are agents of Defendant, Desmond's Studio Production Services when they wrongfully towed Plaintiffs trucks and such cannot be the 'prevailing party' entitled to file a memorandum of costs for purposes C.R.C. Rule 3. 1700."

(See Anyia Decl., Ex.1 –

Plaintiff's proposed Motion to Tax Costs, p.5:20-26)

First, Plaintiff provides no evidence to support the

claim that the Court made any such finding.

(See Aniya Decl., Ex.1). Second, even if the Court did make such a

finding regarding agency, Plaintiff cites no authority for the proposition that

Defendants Black and White Garage Inc.; Ross Baker Towing and Ricardo Castro

are not prevailing parties as against Plaintiff based on the Corrected Judgment

entered by the Court on 6/11/26. Id.

In the late reply,

Plaintiff improperly makes a new argument based on "C.C.P. 1032(4)"

(presumably, Plaintiff intended to cite CCP 1032(a)(4)), claiming that the

Court should determine that Plaintiff is the prevailing party against Defendants

Ross Baker Towing, Inc., Black and White Garage, Inc. and/or Ricardo Castro

because of the agency argument espoused in the moving papers. Once again, Plaintiff provides no evidence to

support its claim that the Court made any such finding. (See Reply, generally). Again, even if the Court did make such a

finding, Plaintiff cites no authority to support a finding that Plaintiff should

be deemed the prevailing party as against agents against whom Plaintiff

recovered nothing merely because their "principal" was found liable under a

negligence theory. Id.

CONCLUSION

The motion is denied.